

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
DAVID WHITE,

Plaintiff,

-against-

CITY OF NEW YORK,
POLICE OFFICER PHILLIP TANTILLO,
LIEUTENANT MATTHEW CAHILL,
and POLICE OFFICERS "JOHN DOE"
whose names are presently unknown,

Defendants,

-----X

To the above-named Defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within (20) days after the service of this summons, exclusive of the day of service (or within (30) days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Forest Hills, New York
August 8, 2018

MORTON POVMAN, P.C.
Attorney for Plaintiff
108-18 Queens Boulevard
Forest Hills, New York 11375
(718) 268-3000

Defendants' Address:

CITY OF NEW YORK
100 Church Street
New York, New York

POLICE OFFICER PHILLIP TANTILLO
73rd Precinct (Shield # 955560)

LIEUTENANT MATTHEW CAHILL
73rd Precinct (Shield # 932397)

Filed: _____
Index No. _____

Plaintiff designates
Kings County as the
Place of Trial

The basis of venue is
the location of
occurrence

SUMMONS

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X

DAVID WHITE,

Plaintiff,

VERIFIED COMPLAINT

-against-

INDEX NO.:

CITY OF NEW YORK,
POLICE OFFICER PHILLIP TANTILLO
LIEUTENANT MATTHEW CAHILL, and POLICE OFFICERS
"JOHN DOE", whose names are presently
unknown,

Defendants,

-----X

Plaintiff, by his attorney, MORTON POVMAN, P.C., as and for
his Verified Complaint, alleges as follows:

STATEMENT OF FACTS, THE PARTIES AND JURISDICTION

1. Plaintiff, DAVID WHITE, is a resident of the County of
Kings, City and State of New York.

2. At all times herein mentioned on May 31, 2017 the
defendant, CITY OF NEW YORK, was and still is a domestic
municipality corporation organized and existing under the laws of
the State of New York.

3. That at all times hereinafter mentioned on May 31, 2017
the New York City Police Department, was and still is an agency,
department and/or division of the defendant, CITY OF NEW YORK.

4. That at all times hereinafter mentioned on May 31, 2017
the defendant, CITY OF NEW YORK, operated the New York City
Police Department.

5. That at all times hereinafter mentioned on May 31, 2017
the defendant, CITY OF NEW YORK, maintained the New York City

Police Department.

6. That at all times hereinafter mentioned on May 31, 2017 the defendant, CITY OF NEW YORK, controlled the New York City Police Department.

7. That prior to the commencement of this action and on or about July 24, 2018, Plaintiff duly filed with the CITY OF NEW YORK a Notice of Claim setting forth the claims, dates, time and place where the occurrence which is the subject of this lawsuit happened, the nature and extent of the injuries and damages sustained and the amount claimed.

8. That the Comptroller of the City of New York has by written letter disallowed the claim.

9. A hearing, pursuant to Section 50-h of the General Municipal Law, has been cancelled or waived by the Comptroller of the City of New York.

10. That this action is commenced within all applicable statutory limitations.

11. That on May 31, 2017 and thereafter, defendants POLICE OFFICERS PHILLIP TANTILLO and LIEUTENANT MATTHEW CAHILL, were employees of the Defendant, CITY OF NEW YORK, more specifically as Police Officers in the New York City Police Department.

12. That at all times hereinafter mentioned on May 31, 2017 and thereafter, defendants POLICE OFFICERS "JOHN DOE" were acting as agents, servants and/or employees of the defendant CITY OF NEW YORK.

13. That at all times hereinafter mentioned on May 31, 2017 and thereafter, defendants POLICE OFFICERS PHILLIP TANTILLO and

LIEUTENANT MATTHEW CAHILL and other New York City Police Officers were acting within the course and scope of their duties, employment and assignments.

14. That on the 31st day of May, 2017 and thereafter, the defendant CITY OF NEW YORK, employed additional police officers whose names are presently unknown but who were involved directly or indirectly in the events giving rise to this lawsuit.

15. On or about May 31, 2017 at approximately 1:45 A.M. the Plaintiff, DAVID WHITE, was falsely arrested by Police Officers of the New York City Police Department including POLICE OFFICER PHILLIP TANTILLO and LIEUTENANT MATTHEW CAHILL. The false arrest occurred in front of the premises know as 337 Bristol Street Brooklyn, New York. The Plaintiff was falsely arrested for allegedly possessing a loaded firearm. The Plaintiff did not possess a firearm, loaded or otherwise, at either the time or location of this false arrest.

16. The Plaintiff was subsequently charged with State and/or Federal criminal charges including the unlawful possession of a loaded firearm. The Plaintiff was initially falsely imprisoned at the 73rd Police Precinct; then at Riker's Island; and then by the United States of America government at Metropolitan Correctional Center. The false arrest of the Plaintiff by the defendant City of New York, including POLICE OFFICER PHILLIP TANTILLO and LIEUTENANT MATTHEW CAHILL was a proximate cause of the Plaintiff being falsely imprisoned at the 73rd Police Precinct, and at Riker's Island and then at the Federal Metropolitan Correctional Center facility. In September,

2017 the plaintiff was falsely arrested for and charged with attempted murder. New York State criminal charges are still pending against the plaintiff for the attempted murder. The false arrest of the plaintiff on May 31, 2017 was a proximate cause of plaintiff's confinement at the Metropolitan Correctional Center because inter alia it was the May 31, 2017 arrest which led to federal charges being filed against the plaintiff.

17. The Plaintiff was maliciously prosecuted for the false criminal charges by the District Attorney's office and/ or the United States Attorney's Office of the Eastern District of New York as a result of the underlying false arrest, the false accusations and/or testimony of POLICE OFFICER PHILLIP TANTILLO and LIEUTENANT MATTHEW CAHILL.

18. The Plaintiff remained falsely imprisoned from May 31, 2017 until June 2017 and then from September 2017 until May 22, 2018 when he was released from the custody of the United States of America. The Plaintiff was released from custody by virtue of a jury trial in the United States District Court, Eastern District, which resulted in an acquittal of the plaintiff of all charges on May 22, 2018.

19. The underlying false arrest of the Plaintiff on May 31, 2017 by the Defendant CITY OF NEW YORK, including POLICE OFFICER PHILLIP TANTILLO and LIEUTENANT MATTHEW CAHILL, was a proximate cause of the Plaintiff's false imprisonment and a proximate cause of the malicious prosecution of the Plaintiff by the District Attorney's office and/ or the United States Attorney's Office resulting in a criminal jury trial.

AS FOR A FIRST CAUSE OF ACTION

20. Plaintiff repeats and reiterates each and every allegation set forth in paragraphs "1" through "19" as if set forth more fully herein at length.

21. Defendants, CITY OF NEW YORK, POLICE OFFICER PHILLIP TANTILLO, LIEUTENANT MATTHEW CAHILL, POLICE OFFICERS "JOHN DOE" and other Police Officers falsely arrested the Plaintiff DAVID WHITE, against his will, without his consent, and/or without probable cause or other legal basis for the arrest.

22. The limitation on liability set forth in CPLR §1601 do not apply by reason of one or more of the exceptions set forth in CPLR §1602(5)(7)(11).

23. That by reason of the foregoing, plaintiff subject to great indignities, humiliation and ridicule; emotional distress; as well as loss of earnings and further pecuniary and economic damages.

24. By reason of the foregoing, plaintiff, DAVID WHITE, has been damaged in an amount which exceeds the jurisdictional requirements of all lower Courts and the Court and jury will be asked to assess punitive damages.

AS FOR A SECOND CAUSE OF ACTION

25. Plaintiff repeats and reiterates each and every allegation set forth in paragraphs "1" through "24" as if set forth more fully herein at length.

26. Defendants, CITY OF NEW YORK, POLICE OFFICER PHILLIP TANTILLO, LIEUTENANT MATTHEW CAHILL, POLICE OFFICERS "JOHN DOE"

and other Police Officers falsely imprisoned plaintiff DAVID WHITE and/or were a proximate cause of the Plaintiff being falsely imprisoned and falsely confined by the City of New York and/or the State of New York, and/or the United States of America intermittently from May 31, 2017 to May 22, 2018.

27. The above imprisonment was against plaintiff DAVID WHITE'S will and without his consent.

28. That by reason of the foregoing, plaintiff subject to great indignities, humiliation and ridicule; emotional distress; as well as loss of earnings and further pecuniary and economic damages.

29. The limitation on liability set forth in CPLR §1601 do not apply by reason of one or more of the exceptions set forth in CPLR §1602(5)(7)(11).

30. By reason of the foregoing, plaintiff, DAVID WHITE, has been damaged in an amount which exceeds the jurisdictional requirements of all lower Courts and the Court and jury will be asked to assess punitive damages.

AS FOR A THIRD CAUSE OF ACTION

31. Plaintiff repeats and reiterates each and every allegation set forth in paragraphs "1" through "30" as if set forth more fully herein at length.

32. Defendants, CITY OF NEW YORK, POLICE OFFICER PHILLIP TANTILLO, LIEUTENANT MATTHEW CAHILL, and POLICE OFFICERS "JOHN DOE", their agents, servants and/or employees were a proximate cause for the malicious prosecution of the Plaintiff by the

District Attorney's office and/or the United States Attorney's Office without any just right or grounds therefor.

33. Defendants, CITY OF NEW YORK, POLICE OFFICER PHILLIP TANTILLO, LIEUTENANT MATTHEW CAHILL, and POLICE OFFICERS "JOHN DOE", were a proximate cause of the criminal proceedings against plaintiff because of a wrong or improper motive, other than a desire to see the ends of justice served.

34. Defendants, CITY OF NEW YORK, POLICE OFFICER PHILLIP TANTILLO, LIEUTENANT MATTHEW CAHILL, and POLICE OFFICERS "JOHN DOE", knew or should have known that the criminal charges were false, groundless and unconstitutional before the charges were brought and during the entire course of the malicious prosecution.

35. That by reason of the foregoing, plaintiff was subject to great indignities, humiliation and ridicule; emotional distress; as well as loss of earnings and the pecuniary and economic damages.

36. The limitation on liability set forth in CPLR §1601 do not apply by reason of one or more of the exceptions set forth in CPLR §1602(5)(7)(11).

37. By reason of the foregoing, plaintiff, DAVID WHITE, has been damaged in an amount which exceeds the jurisdictional requirements of all lower Courts and the Court and jury will be asked to assess punitive damages.

AS FOR A FOURTH CAUSE OF ACTION

38. Plaintiff repeats and reiterate each and every allegation set forth in paragraphs "1" through "37" as if set forth more fully herein at length.

39. Each and all of the acts of the defendants, CITY OF NEW YORK, POLICE OFFICER PHILLIP TANTILLO, LIEUTENANT MATTHEW CAHILL, and POLICE OFFICERS "JOHN DOE" alleged herein were under the color and pretense of the statutes, ordinances, regulations, customs and usages of the State of New York, the City of New York and the County of Kings and/or under the authority of their offices as law enforcement officials in their investigative and/or administrative capacities for such city and county.

40. The conduct of the defendants, CITY OF NEW YORK, POLICE OFFICER PHILLIP TANTILLO, LIEUTENANT MATTHEW CAHILL, and POLICE OFFICERS "JOHN DOE" subjected plaintiff to the deprivation of the following rights, privileges and immunities secured by the Constitution of the United States, among others: right to be secure in ones' person and effects against unreasonable search and seizure under the Fourth and Fourteenth Amendments of the Constitution of the United States; the right to be informed of the nature and cause of the accusation against one under the Sixth and Fourteenth Amendments of the Constitution of the United States and the right not to be deprived of life, liberty or property without due process of law, and the right to equal protection of the laws, secured by the Fourteenth Amendment of the Constitution of the United States.

41. Plaintiff has thus been injured by violation of the Constitution of the United States of America and violations of all applicable City, State and Federal statutes.

42. The foregoing acts and omissions causing plaintiff's damages were implemented and proximately caused by the police pursuant to a specific custom and policy of the defendants, which

was in effect at all times mentioned in this complaint.

43. By reason of the foregoing, defendants, CITY OF NEW YORK, POLICE OFFICER PHILLIP TANTILLO, LIEUTENANT MATTHEW CAHILL, and POLICE OFFICERS "JOHN DOE", are liable to plaintiff under Title 42 of the United States Code, including but not limited to Section 1983.

44. The limitation on liability set forth in CPLR §1601 do not apply by reason of one or more of the exceptions set forth in CPLR §1602(5)(7)(11).

45. By reason of the foregoing, plaintiff, DAVID WHITE, has been damaged in an amount which exceeds the jurisdictional requirements of all lower Courts and the Court and jury will be asked to assess punitive damages.

AS AND FOR A FIFTH CAUSE OF ACTION

46. Plaintiff, DAVID WHITE, repeats and realleges each and every allegations set forth in paragraphs "1" through "45" of this Complaint, as if set forth at length herein.

47. That the defendant, CITY OF NEW YORK, negligently hired, negligently retained and negligently supervised the defendants, POLICE OFFICER PHILLIP TANTILLO, LIEUTENANT MATTHEW CAHILL, and POLICE OFFICERS "JOHN DOE" and as well as other members of the New York City Police Department whose identities are presently unknown.

48. That on or about May 31, 2017, and thereafter up to the present and into the future, the Plaintiff, DAVID WHITE, was caused injury and damages, emotional and pecuniary, due to the defendant CITY OF NEW YORK's negligent hiring, negligent retention and

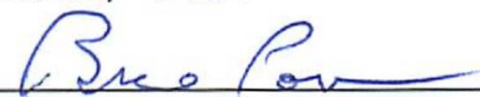
negligent supervision of the defendants, POLICE OFFICER PHILLIP TANTILLO, LIEUTENANT MATTHEW CAHILL, and POLICE OFFICERS "JOHN DOE" as well as other members of the New York City Police Department.

49. The limitation on liability set forth in CPLR §1601 do not apply by reason of one or more of the exceptions set forth in CPLR §1602(5)(7)(11).

50. By reason of the foregoing, plaintiff, DAVID WHITE, has been damaged in an amount which exceeds the jurisdictional requirements of all lower Courts and the Court and jury will be asked to assess punitive damages.

WHEREFORE, The plaintiff, DAVID WHITE, demands judgment against the defendants on the First Cause of Action; on the Second Cause of Action; on the Third Cause of Action; on the Fourth Cause of Action and on the Fifth Cause of Action in amounts which exceed the jurisdictional requirements of all lower Courts, together with punitive damages and the costs and disbursements of this action.

Yours, etc.



BRUCE POVMAN, ESQ.
MORTON POVMAN, P.C.
Attorney for plaintiff
108-18 Queens Blvd.
Forest Hills, New York 11375
(718) 268-3000

BRUCE S. POVMAN, ESQ., an attorney admitted to practice in the Courts of New York.

I am associated with MORTON POVMAN, P.C., the attorney of record for plaintiff(s) in the within action.

Deponent has read the foregoing SUMMONS AND VERIFIED COMPLAINT, and knows the contents thereof; the same is true to deponent's own knowledge, except as to the matters therein stated to be alleged upon information and belief, and that as to those matters, deponent believes it to be true. This verification is made by deponent and not by plaintiff, because plaintiff does not reside within the County where your affiant maintains his office.

The grounds of deponent's belief as to all matters not stated upon deponent's knowledge are as follows:

Investigation and information contained in affiant's
file.

The undersigned affirms that the foregoing statements are true, under penalties of perjury.

Dated: Forest Hills, New York
August 8, 2018


BRUCE POVMAN, ESQ.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

DAVID WHITE,

Plaintiff(s),

-against-

CITY OF NEW YORK,
POLICE OFFICER PHILLIP TANTILLO,
LIEUTENANT MATTHEW CAHILL,
and POLICE OFFICERS "JOHN DOES",
whose names are presently unknown,

Defendant(s),

SUMMONS AND VERIFIED COMPLAINT

MORTON POVMAN, P.C.

Attorney for Plaintiff(s)

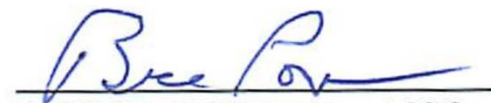
Office and Post Office Address, Telephone

108-18 Queens Boulevard

Forest Hills, New York 11375

(718) 268-3000

Pursuant to 22 NYCRR 130-1.1, the undersigned, an attorney admitted to practice in the Courts of New York State, certifies that, upon information and belief and reasonable inquiry, the contentions contained in the annexed document are not frivolous



BRUCE POVMAN, ESQ.
MORTON POVMAN, P.C.

PLEASE TAKE NOTICE:

NOTICE OF ENTRY

that the within is a (certified) true copy of an duly entered in the
office of the clerk in the within named court on

NOTICE OF SETTLEMENT

that an order of which the within is true copy
will be presented for settlement to the HON.
one of the judges of the within named Court, at on

Yours, etc.

MORTON POVMAN, P.C.

Attorney for Plaintiff(s)

108-18 Queens Boulevard

Forest Hills, New York 11375

(718) 268-3000